RESEARCH PAPER | 16 OCTOBER 2026

Peace Before Passports

Documentary Grace and American Protection in the Maghreb, 1795-1816

Shivam Gupta
Independent Researcher, Delhi, India
shivam1720406@gmail.com

Abstract

When did a treaty of peace become protection for a ship whose new papers had not yet arrived? This article examines documentary transitions in six United States treaties with Algiers, Tripoli, and Tunis between 1795 and 1816, with Morocco in 1786 as a comparator. A source-linked register distinguishes initial passport distribution, temporary documentation for purchased prize vessels, convoy declarations, and the evidentiary conditions of protection. Eighteen-month provisions did different work at Tripoli and Tunis; immediate passport issuance after 1805 coexisted with purchase allowances of two years or six months. Richard O'Brien's October 1798 account of the brig Mary connects these distinctions to a contested seizure, the material instability of indented passes, and a proposed period of overlapping validity. Published translations also preserve differences in eligibility and acceptable evidence. The article argues that protection was negotiated through provisional recognition: arrangements for accepting incomplete, substitute, or superseded documentary credentials. This perspective locates the domestic production of American maritime authority within institutions and decisions in North Africa. Reproducible code exposes the comparison and its interpretive boundaries; it does not turn treaty prescriptions into enforcement statistics.

Keywords: early American republic; Maghreb; maritime protection; Mediterranean passports; consular history; public history

Research materials: github.com/shi1720/peace-before-passports

1. A peace that a ship could not yet display

On 5 October 1798 an Algerian corsair brought the Philadelphia brig *Mary* into Algiers. According to the American consul general, Richard O'Brien, the vessel carried an American register and sea letter but lacked the Mediterranean passport through which its protection should have been recognized. The distinction was dangerous. O'Brien reported an order to send the crew to the slave prison, his intervention to keep them in his custody, and successive proceedings over the ship and cargo. The United States was at peace with Algiers. The difficulty was how that peace could be established for this particular vessel with these particular papers.[1]

O'Brien's dispatch did more than recount a rescue. He invoked the eighteen months allowed for furnishing American ships with passports under the 1795 treaty, described his efforts to treat the brig's bill of sale as a passavant and consular certificate, and explained how personal influence and a promised payment entered the dispute. He then turned to a different threat: American passports whose cut edges failed to match the counterparts used for inspection. He proposed new passes, accompanied by a period in which the old ones would remain valid. A report about the consequences of missing paperwork thus became a proposal about how to replace defective paperwork without exposing commerce to another interval of danger.

This article asks how American protection was organized during such intervals. The answer requires distinguishing a treaty's assertion of peace from the forms through which a ship could become recognizable as entitled to it. In the surviving treaty texts, temporary recognition attached to different objects: an existing vessel awaiting a newly prescribed passport; a purchased prize awaiting its new documentation; a ship under a commander whose declaration could substitute for examination. These arrangements did not abolish documentary requirements. They specified when particular alternatives would suffice, who could authorize them, and when that sufficiency would end.

I use *provisional recognition* to describe these arrangements, rather than as a term attributed to the historical actors. Its distinctive feature is an accepted gap between a claim to protection and possession of the document normally used to establish it. The gap could be managed through another paper, another issuing authority, a bounded interval, or an officer's word. This is a historical interpretation of a small documentary sequence, not a claim that early Americans invented temporary credentials or that North African governments operated a uniform identification system.

The argument has three parts. First, documentary grace was differentiated: identical durations could concern different requirements, while a single treaty could demand immediate passport issuance and still authorize substitutes for newly purchased ships. Second, the recognition of American commerce depended on decisions and practices in the Maghreb, including the handling of consular certificates, the appraisal of seals, and the testing of cut paper. Third, the documentary record itself preserves divergent specifications of the protected vessel and acceptable proof. A historical account must keep these differences visible rather than create an artificially seamless treaty regime.

The inquiry contributes to the history of the early United States in the world by locating the production of national authority between treaty clauses, federal paperwork, commercial circulation, and North African adjudication. It also addresses a public-history problem. A passport displayed as proof of nationality can conceal the negotiations that determined whether it would actually count. The accompanying register makes those negotiations and textual qualifications inspectable alongside the paper artifact.

2. Protection, commerce, and the limits of a passport story

Passport-based protection is an established subject. Tristan Stein traces the British Mediterranean pass from interstate identification to a resource of imperial protection, showing how merchants and shipowners sought access to it through British possessions. His account makes clear that papers did not merely record an already settled relationship between a state and its shipping. The present inquiry builds on that insight by isolating a different problem: the temporary acceptance of alternatives during the installation, transfer, and proposed replacement of American credentials. It does not claim the discovery of the Mediterranean pass or its political significance.[2]

The diplomatic history of the American encounter with North Africa likewise has an extensive literature. Frank Lambert situates the Barbary wars within the effort to make American independence effective in an Atlantic commercial world. Lawrence Peskin examines how captivity and its circulation through the American public shaped national self-understanding. Their subjects establish the stakes of protecting commerce without making a passport clause an adequate explanation of either war or nationalism. This article instead follows the smaller institutional problem through which a promise of peace could fail to identify an individual ship.[3]

Brett Goodin's study of former captives and nation-building emphasizes the importance of consular autonomy, personal relations, and private commerce. His discussion of the effects of slow communication helps explain why a consul could not simply forward a documentary problem to the United States and await instructions. The *Mary* dispatch allows a closer examination of what discretion did to the evidentiary object itself: O'Brien described and supplemented papers, enlisted intermediaries, and tried to obtain recognition for an improvised credential.[4]

Work on protection and empire supplies a further caution. Lauren Benton and Adam Clulow emphasize that protection could bind polities while leaving the precise distribution of authority uncertain. Erik de Lange's recent study places the nineteenth-century campaign against Mediterranean piracy within the production of security and empire. These approaches discourage treating North African institutions as the inert background to an inevitable American naval solution. The question here is how distinct parties made protection recognizable through arrangements that depended on local power as well as distant authority.[5]

The contribution is therefore a comparative history of documentary transitions, joined to a closely read enforcement episode. The sequence is useful because it resists a simple before-and-after narrative. Tripoli's 1805 treaty combined immediate passport issuance with a longer purchase allowance than its 1796 predecessor. Algiers's later treaties retained a shorter purchase allowance while prohibiting tribute. Documentary accommodation and military bargaining strength cannot be collapsed into one chronological scale. Nor does the repeated invocation of distance specify a single technical period necessary for documents to travel.

3. Sources, comparison, and the evidentiary unit

The central corpus comprises the treaties with Algiers of 1795, 1815, and 1816; Tripoli of 1796 and 1805; and Tunis of 1797, altered in 1799. Morocco's 1786 treaty provides a comparator for convoy declarations and restrictions on pursuit. The texts are consulted through Hunter Miller's government edition of 1931, as reproduced by Yale's Avalon Project. Miller's notes distinguish original languages, contemporary translations, later translations, ratification, and alterations. The Tunis text is the instrument as altered in 1799; the clauses used here were not among the three altered articles.[6]

A register records thirty article-witness units from ten textual witnesses: twenty-two selected passages from the edition's main treaty texts and eight from its later renderings of Turkish or Arabic. A unit is an article in a specified witness, not an independent treaty or enforcement event. Seven treaty instruments are represented when the Moroccan comparator is included. The selection follows the mechanisms under investigation, rather than sampling all treaty articles: passport transition, purchased-prize documentation, convoy recognition, boarding restrictions, pursuit delay, and the treatment of Americans aboard captured ships. The corpus is purposive and makes no claim to exhaust all Mediterranean agreements.

The register preserves article numbers, source links, full selected passages, the textual witness, an interpretive description, and any explicit numerical term. A null numerical field means that the selected clause states no numerical maximum; it does not mean perpetual validity. Immediate issuance is stored separately from an eighteen-month transition, and the twenty-four-hour interval governing pursuit is marked in hours rather than months. A separate record for the 1797 Tunis clause prevents its eighteen months from being treated as a general passport waiver.

The enforcement evidence is O'Brien's dispatch of 12 October 1798, printed on pages 258-262 of the first volume of *Naval Documents Related to the United States Wars with the Barbary Powers*. The page images, rather than their imperfect optical character recognition alone, establish the dispatch date, the ship's name, and the numerical details used below. The printed edition itself sometimes renders the name as May within the same dispatch; *Mary* follows its opening identification. This is one American official's account, not a surviving transcript of the Algerian proceedings or independent testimony from those threatened with imprisonment.[7]

The analysis moves between prescribed procedures and a reported encounter without treating them as interchangeable evidence. Treaty clauses establish negotiated formulations. The dispatch establishes what O'Brien reported, argued, and recommended. Its account of decisions is evidence of reported practice, with the limits imposed by his institutional position and interest in defending his actions. Later translations are used as published textual witnesses, not as new translations independently verified against Arabic or Ottoman Turkish manuscripts.

The software reproduces a descriptive comparison from the annotated register and checks source-file hashes, the presence of selected passages, explicit duration phrases, witness separation, and the distinction between units of time. These are audit checks. Their success does not prove that an annotation is the only defensible interpretation. The code's substantive value is to expose where a comparison depends on a decision about scope, documentary form, or witness selection, and to make a proposed correction propagate into the published comparison.

Instrument / main witness	Articles in register	Additional witness	Purpose in comparison
Morocco, 1786	4, 5, 11	None	Convoy, inspection, pursuit comparator
Algiers, 1795	4, 8, 12, 19	Kramers rendering of Turkish, same articles	Transition, purchase, personal proof
Tripoli, 1796	4, 5, 8	Snouck Hurgronje rendering of Arabic, arts. 4-5	Initial supply and purchased prizes
Tunis, 1797/1799	4, 5, 7	None	Conge/testa, convoy, local purchase papers
Tripoli, 1805	6, 7, 10	None	Immediate supply and two-year purchase term
Algiers, 1815	7, 8, 11	None	Immediate supply and six-month purchase term
Algiers, 1816	7, 8, 11	Kramers rendering of Turkish summary, arts. 7-8	Renewal and documentary divergence

Table 1. Source coverage. Thirty selected article-witness units, ten witnesses, seven instruments. Later translations are not counted as new treaties. Selection is mechanism-based, not a census of treaty provisions.

4. Several kinds of documentary grace

Article 4 of the English text of the 1795 Algiers treaty limited the visit to an American merchant vessel to two persons besides the rowers, unless further permission was obtained. It required comparison of the passport, restricted issuance to ships absolutely owned by American citizens, and allowed eighteen months to furnish United States ships with passports. Read together, these provisions concerned both the conduct of inspection and the conditions under which a ship could claim the new documentary status. The allowance was not a license to extend American papers to whatever property merchants wished to protect.[8]

The 1796 Tripoli treaty stated the transitional arrangement more explicitly. Its fourth article prescribed passports for vessels of both parties and allowed eighteen months from the treaty date because of the distance between the countries. During that interval other papers belonging to a vessel would suffice for its protection. The clause recognized that a ship could be eligible for the peace before it possessed the newly required credential. It dealt with distribution across an existing fleet, rather than the separate transition created by a later change of ownership.[9]

That latter problem appeared in Article 5. A citizen or subject who purchased a condemned prize could use the certificate of condemnation and bill of sale as a passport for one year. The documents established a legally relevant history of the vessel: condemnation and purchase, rather than possession of its eventual national passport. The agreed substitute made an ownership transition navigable. The one-year term and the eighteen-month term consequently had different objects and different textual anchors. Treating both as a single general grace period would discard the transaction that activated the purchase allowance.

Tunis supplied a still different formulation. Article 4 of its 1797 treaty provided for sufficient passports and an eighteen-month term during which those passports were to be respected without requiring the conge, described in the English text as a document called testa at Tunis. After the term the conge was to be presented. The sentence does not say that American vessels could sail without any passport for eighteen months. Its contrast is between an accepted passport and an additional named documentary requirement. The physical and linguistic relationship between conge and testa warrants further investigation; the distinction in the published wording is already enough to prevent a blanket-waiver reading.[10]

Tunis's Article 7 also recognized the acquisition of prize vessels, but specified a local documentary path. An American purchaser could obtain the Regency's passport for a year, while the consul furnished a bill of sale. At expiry, a vessel encountered without the passport of the United States could be declared good prize, including cargo and crew. The clause made substitution both useful and coercive. A temporary North African credential enabled a commercial passage toward American documentation; its expiry could expose the same ship and persons to capture. Temporary recognition was a rule for distinguishing protected from unprotected traffic, not simply an indulgence by a state unable to enforce its demands.

The 1805 Tripoli settlement complicates any assumption that grace diminished uniformly as American naval force increased. Article 6 demanded that passports be supplied immediately. Article 7 nevertheless made the certificate of condemnation and bill of sale sufficient for a purchased prize for two years. The general instruction and the transaction-specific substitute coexisted. Relative to the earlier Tripoli purchase clause, the stated allowance doubled from twelve to twenty-four months. This is a comparison of terms in two treaties, not evidence that every purchaser enjoyed twice as much effective security.[11]

The 1815 and 1816 Algiers English texts again prescribed immediate passports but allowed six months for purchased prizes. Both invoked the distance between the countries as a reason why the interval was reasonable. Distance therefore appeared in clauses allowing twelve, twenty-four, and six months. Those variations cannot be explained by simply reading geography as a fixed numerical input. The texts record negotiated accommodations; explaining why the parties selected each particular duration would require negotiating evidence beyond the clauses themselves.[12]

Other substitutions were not time allowances at all. Morocco's 1786 treaty accepted a warship commander's declaration as sufficient to exempt ships in convoy from examination, while Tunis's Article 5 accepted the word of the escorting commander. These provisions relocated the recognition of merchant vessels into the authority of an accompanying officer. By contrast, the twenty-four-hour restrictions on an enemy's pursuit from the same port regulated the sequencing of departure. They belong to the wider management of safe navigation but do not authorize missing papers. Keeping these forms apart reveals an assortment of procedures rather than one uniform Mediterranean passport rule.[13]

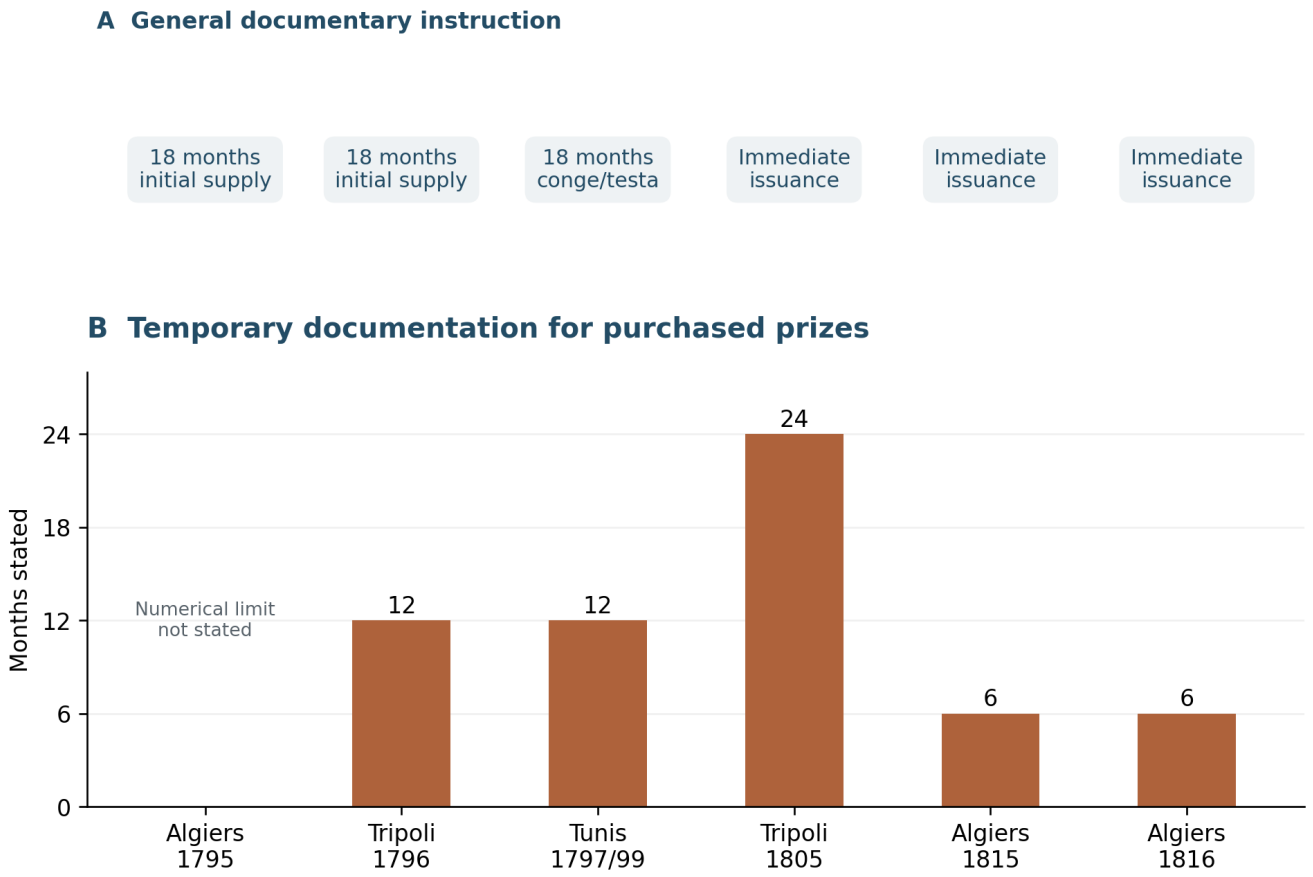


Figure 1. Different transitions in the six principal treaty instruments. Panel A separates initial supply, the Tunis conge/testa provision, and immediate issuance. Panel B shows only numerical terms for purchased-prize documentation; a blank column with a text label denotes an unstated numerical limit. Terms are not enforcement outcomes. Sources: register, articles in Table 1.

5. The Mary: documents, intervention, and a proposed replacement

The *Mary* episode shows why the distinction between American identity and an acceptable credential mattered. O'Brien reported that the brig's register and sea letter were American, yet described the missing Mediterranean pass as a reason why crew, vessel, and cargo were vulnerable. His account explicitly invoked the eighteen-month provision of the 1795 treaty. The reported encounter occurred in October 1798, well beyond eighteen months after September 1795, whatever minor uncertainty attended the contemporary calendar correspondence. It cannot be treated as a case occurring inside the original distribution allowance.[14]

His first task was to alter how the papers would be understood. The register was endorsed and the brig had a bill of sale associated with a transfer to Captain Joseph Isreal and Robert Stevenson of Philadelphia. O'Brien declared that the bill of sale was a passavant and consular certificate. He argued that French and British captures, disturbed papers, and European detention explained the brig's predicament, and that the vessel was returning to America to obtain its Mediterranean pass. The claim joined documentary form to an account of disrupted movement. American ownership was not abandoned; O'Brien attempted to make a different paper carry its protective consequences.

The treaty's purchase provision is relevant to understanding the available vocabulary, but it should not be made to decide the case retrospectively. Article 8 of the 1795 English text concerned a prize condemned by the Algerians and a certificate from the resident consul. O'Brien's account describes a more complicated history involving French and British interference, and he characterized the existing bill of sale before producing a stronger consular certificate. The dispatch does not establish a clean factual match to the treaty's stated purchase category. His intervention was an effort to obtain acceptance, not proof that the brig transparently satisfied an uncontested exception.

The reported process was collective and divided. O'Brien described seeking assistance from the general of the marine and the Bocries, the mercantile intermediaries whose help he stressed. On 6 October, according to his dispatch, the marine authorities treated the absence of a Mediterranean pass as grounds for a lawful prize. His alternative account and a promise of 2,500 dollars influenced their recommendation, but the captain of the port and the corsair's owners opposed release. The Dey warned against bribery and reserved his decision. The sequence places American protection within the relations among officials, commercial interests, and intermediaries in Algiers.

The next reported meeting, on 8 October, concerned the contents of the papers and precedents in the authorities' books. O'Brien said that different leaves supported condemnation and clearance. His account then presented the Dey as declaring the vessel a lawful prize while releasing ship and cargo as a favor associated with the consul and the United States. The accompanying warning was that future vessels without passes would be condemned and consular certificates would no longer suffice to save vessel or cargo. Release, in this telling, did not amount to recognition of a general American right to substitute whatever consular evidence was available.

The dispatch is also a performance of consular competence. O'Brien described producing a stronger certificate, valuing the twenty-one crew members and passengers in terms of a possible American redemption cost, and reducing the stated cargo valuation through negotiation and calculation. These interventions served his argument that his work had prevented a much greater loss. The promised 2,500 dollars is not independently verified here as a completed payment; the original cargo figure is not adopted

as an audited market valuation. His narrative explains why documentary ambiguity generated room for intervention, while its self-justifying features limit what can be concluded about each participant's motives.

The dispatch then shifted from an absent passport to unreliable passports. O'Brien reported examining American passes and finding them too long and broad. Their cut tops did not agree precisely with the bottoms held by merchant vessels. Dampness, dryness, folding, and unsuitable material could change the fit. He sent an American pass and two tops to demonstrate a discrepancy that he described as one-tenth of an inch. The consequence he feared was the condemnation of cargo even where the document had been genuinely issued. This was a problem of the credential's material performance, not only its possession.[15]

A surviving passport for the ship *Commerce*, issued in August 1797 and held by the United States National Archives, helps make the procedure intelligible. Its scalloped division formed part of a comparison between the ship's document and counterparts distributed through consuls. The archive's description identifies the document as particular to its vessel and explains matching top to bottom. This artifact corroborates the kind of physical comparison at stake, rather than independently confirming the measurements of O'Brien's enclosed specimens. The latter have not been inspected for this study.[16]

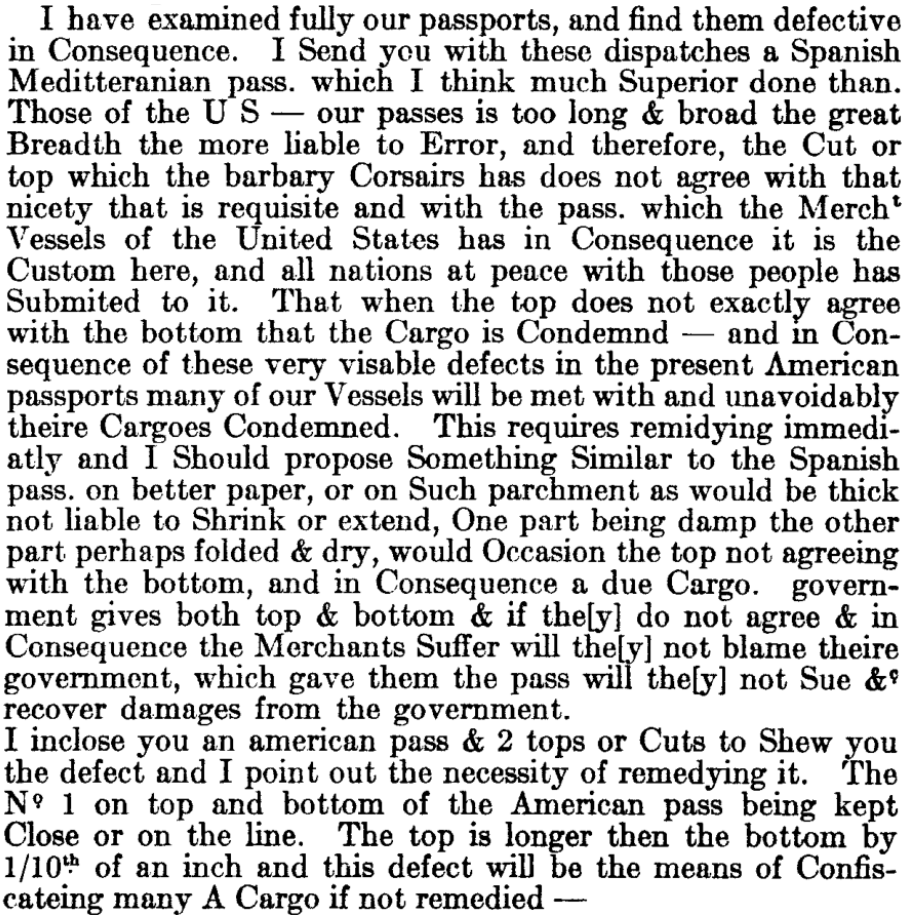
O'Brien also worried that captures and resales had dispersed American passports into other hands. His replacement proposal thus addressed two distinct failures: authentic papers might fail to match, while a paper that matched might have passed outside its intended protective relationship. A new design alone would leave another difficulty. Merchant ships needed new documents, but the corresponding tops also had to reach Algiers, Tunis, and Tripoli. If one end of the arrangement changed first, a ship might be no safer with the new paper than with the old.

His proposed answer was overlapping validity. O'Brien suggested allowing eighteen months for distribution of new passes while the old ones remained good, later describing the anticipated circulation as eighteen months or two years. Ships that acquired the new pass would no longer need the old. The proposal echoed the practical problem addressed by treaty transition clauses but arose from replacement rather than initial establishment. It joined a validity interval to a program of manufacture, distribution, and use. The dispatch alone does not establish that the government adopted this timetable or that every North African authority agreed to it.

Material handling was part of the proposal. Better paper or thick parchment would resist shrinking and stretching; rolling and keeping a pass in a tin container could reduce damage from folding. O'Brien then extended the problem to seals and flags. He described comparing the public seal of his consular commission to that on the brig's sea letter, and complained that state-specific symbols were insufficiently recognizable. His insistence on national colors and a recognizable national seal made domestic standardization answerable to the conditions of encounter abroad. The local recognition of an American ship helped define what a usable American document had to look like.[17]



Figure 2. Reported sequence in the Mary dispute. Arrival at Algiers is not identified as the date of capture at sea. The subsequent timetable for replacing passes is O'Brien's proposal, not demonstrated policy implementation. Source: dispatch of 12 October 1798, 258-262 (note 1).



I have examined fully our passports, and find them defective in Consequence. I Send you with these dispatches a Spanish Meditteranian pass. which I think much Superior done than. Those of the U S — our passes is too long & broad the great Breadth the more liable to Error, and therefore, the Cut or top which the barbary Corsairs has does not agree with that nicety that is requisite and with the pass. which the Merch[t] Vessels of the United States has in Consequence it is the Custom here, and all nations at peace with those people has Submited to it. That when the top does not exactly agree with the bottom that the Cargo is Condemnd — and in Consequence of these very visable defects in the present American passports many of our Vessels will be met with and unavoidably theire Cargoes Condemned. This requires remidying immediatly and I Should propose Something Similar to the Spanish pass. on better paper, or on Such parchment as would be thick not liable to Shrink or extend, One part being damp the other part perhaps folded & dry, would Occasion the top not agreeing with the bottom, and in Consequence a due Cargo. government gives both top & bottom & if the[y] do not agree & in Consequence the Merchants Suffer will the[y] not blame theire government, which gave them the pass will the[y] not Sue &[c] recover damages from the government.
I inclose you an american pass & 2 tops or Cuts to Shew you the defect and I point out the necessity of remedying it. The N[o] 1 on top and bottom of the American pass being kept Close or on the line. The top is longer then the bottom by 1/10[th] of an inch and this defect will be the means of Confiscateing many A Cargo if not remedied —

Figure 3. O'Brien's discussion of passport dimensions, dampness, matching edges, and the enclosed specimens. Cropped reproduction of printed page 260, Knox, ed., Naval Documents, vol. 1 (1939). U.S. government publication. The reported one-tenth-inch discrepancy is not a new measurement. Source: note 15.

6. Protection changes when the witness changes

The documentary transition cannot be reconstructed by taking the edition's English treaty texts as transparent equivalents of all the negotiated instruments. Miller printed a new rendering by J. H. Kramers of the Turkish original of the 1795 Algiers treaty. Its fourth article expressly described reciprocal restraint during eighteen months for ships without the prescribed passports. Kramers nevertheless flagged uncertainty in the expression fixing the beginning of the term. The same article's restriction concerned a crew not under the American ruler, whereas the contemporary English wording concerned ships absolutely owned by American citizens. Ownership and the protected composition of a crew are related, but they are not the same criterion.[18]

The 1796 Tripoli witnesses also require restraint. Joel Barlow's English text expressly accepted a vessel's other papers during the eighteen-month period. The later rendering of the Arabic by C. Snouck Hurgronje instead described reciprocal restraint on taking ships and the eventual passport requirement. The rendering of the purchase article retained a year from purchase while identifying an obscure sentence and an apparent omission. These observations support a distinction between witness formulations, not an accusation that every difference arose from deliberate deception or a basis for reconstructing how every officer read the treaty.[19]

The 1816 Algiers treaty offers an especially consequential contrast. The English purchase clause concerned a condemned prize and required certificates of condemnation and a bill of sale. Kramers's rendering of the Turkish summary referred more broadly to Americans who bought a ship from other persons, encountered Algerian warships on their way home, and presented a consular statement or bill of sale. Both witnesses specified six months, yet they did not describe the same category of vessel, combination of papers, or voyage condition. Recording only the number six would preserve agreement on duration while concealing disagreement on what that duration protected.[20]

Dimension	English original, art. 8	Kramers rendering of Turkish summary, art. 8
Vessel category	Purchased prize condemned by a contracting party or another nation	Ship bought by Americans from other persons
Accepted evidence	Certificates of condemnation AND bill of sale	Consular statement OR bill of sale
Voyage condition in clause	No explicit homeward condition	Encounter on the way home
Numerical allowance	Six months	Six months
Witness status	English original in Miller’s account	Accompanying Turkish translation or summary, rendered later into English

Table 2. Agreement on a number does not establish agreement on a protected object. Capitalized AND/OR highlight differences in the published English wording, not a formal legal judgment about the instruments’ authority. Source: Algiers 1816, art. 8, main text and Kramers witness (note 20).

These witnesses are not interchangeable legal authorities. In Miller's account the 1816 original was English, while the Turkish text was a translation or summary written with it. Conversely, the 1795 original was Turkish. This asymmetry matters: textual divergence in a summary is not automatically a coequal

negotiated amendment, but it remains evidence of what could be communicated or understood through that witness. The analysis keeps document status alongside wording rather than either flattening the variants or declaring one universally irrelevant.

The editors' descriptions of linguistic quality also belong to their own historical setting. Their judgments about defective language and the competence of scribes should not be mistaken for neutral accounts of North African political capacity. This study relies on the distinctions their edition preserves while leaving the translations open to correction by specialists. The evidentiary gain lies in preserving the existence and object of a difference, not in assuming that a modern English rendering dissolves every uncertainty of the instrument.

7. The domestic production of protection abroad

The case and comparison together change the geography of American state-making. Passport authority was issued from the United States, but a useful credential depended on recognition elsewhere. A signature, an official seal, a cut edge, and a ship's colors had to operate within inspection practices beyond federal control. Conversely, O'Brien's descriptions of those practices became demands for changes in American production and handling. What appears domestically as an administrative specification can thus be read as a response to a foreign relation.

This interpretation does not replace military power, payments, or coercion with paper. They entered the same encounters. In the *Mary* dispatch the threat to persons, the disposition of cargo, the consul's promise of money, and the Dey's favorable exercise of authority all shaped the meaning of a certificate. A provisional document was effective only insofar as relevant actors accepted it. The later treaties' prohibitions on tribute likewise coexisted with inspection rules and documentary substitutes. The persistence of paperwork after military success is evidence that recognizing an eligible ship remained a problem; it does not by itself measure the balance of power.

Nor was temporary recognition equally distributed. The clauses specified national ownership or subjecthood, condemned prizes, particular documentary histories, and the presence of an escort. Some travelers benefited from another actor's declaration while others needed their own papers. The 1795 Algiers English text itself juxtaposed a demand for a regular passport for an American on an enemy ship with a later article accepting papers proving citizenship. Those provisions should prompt questions about evidentiary thresholds rather than an effortless inference that nationality always protected its bearer. There is no basis here for estimating how treatment varied by race, gender, or social status; the surviving selections are insufficient to answer those questions.

The practical outcome of this research is an inspectable comparative edition at the clause level. Its records retain the source witness, protected object, substitute evidence, duration, and uncertainty rather than exposing only a year and a country. This design can support museum interpretation and teaching about the United States in the world. A viewer should be able to ask which paper counted, for which ship, and under whose authority, while moving back to the passage that supports the answer. Such use does not require presenting the dataset as an automated historical adjudicator.

8. Conclusion

American peace in the Maghreb did not become maritime protection through the distribution of a single, self-sufficient proof of nationality. The treaty sequence organized several transitions between protected status and standard documentation. Eighteen months could authorize acceptance of other papers at Tripoli or suspend a named documentary requirement at Tunis. A newly purchased prize could have a separate allowance even where passports were to be issued immediately. A convoy commander's word could displace examination without operating as a grace period at all.

O'Brien's report gives these distinctions a concrete institutional setting. He tried to make the *Mary*'s papers acceptable after the original passport allowance had passed, secured a reported release that preserved the Dey's warning about future cases, and proposed overlapping validity to manage a new documentary change. His concern with seals, flags, and the fit of cut paper shows that American administrative standards were partly produced through encounters with the institutions charged with recognizing them abroad.

The resulting contribution is a history of provisional recognition in the making of American protection. It identifies a problem that a treaty's declaration of peace or a museum's display of a passport can leave unresolved: how a political relationship applied while its prescribed proof was absent, changing, or contested. The reproducible comparison makes the answer's textual dependencies visible. Further work should test the argument against additional dispatches, original-language instruments, customs records, and the voices of people whose safety depended on documents they did not control.

Notes

1. Richard O'Brien to the Secretary of State, Algiers, 12 October 1798, in Dudley W. Knox, ed., *Naval Documents Related to the United States Wars with the Barbary Powers*, vol. 1, *Naval Operations Including Diplomatic Background from 1785 through 1801* (Washington, DC: Government Printing Office, 1939), 258-262. The digitized source is available through the American Naval Records Society collection; PDF pages 76-80 of that part.

2. Tristan Stein, "Passes and Protection in the Making of a British Mediterranean," *Journal of British Studies* 54, no. 3 (2015): 602-631, doi:10.1017/jbr.2015.58. The discussion here relies on the published abstract and accessible reference apparatus, not access to the paywalled full article.

3. Frank Lambert, *The Barbary Wars: American Independence in the Atlantic World* (New York: Hill and Wang, 2005); Lawrence A. Peskin, *Captives and Countrymen: Barbary Slavery and the American Public, 1785-1816* (Baltimore: Johns Hopkins University Press, 2009). These works establish historiographical context; the general characterizations here follow their publishers' descriptions and accessible previews.

4. Brett Goodin, "Opportunities of Empire: Three Barbary Captives and American Nation-Building, 1770-1840" (PhD diss., Australian National University, 2015), chap. 4, especially 104-106 and 115-117. Open thesis. Date follows the title page, December 2015.

5. Lauren Benton and Adam Clulow, "Empires and Protection: Making Interpolity Law in the Early Modern World," *Journal of Global History* 12, no. 1 (2017): 74-92, published abstract; Erik de Lange, *Menacing Tides: Security, Piracy and Empire in the Nineteenth-Century Mediterranean* (Cambridge: Cambridge University Press, 2024), doi:10.1017/9781009364126. General positioning follows accessible publisher descriptions; no claim to an exhaustive review of the book's archive is made.

6. Hunter Miller, ed., *Treaties and Other International Acts of the United States of America*, vol. 2, *Documents 1-40: 1776-1818* (Washington, DC: Government Printing Office, 1931), treaty texts and editorial notes, via Avalon's Barbary Treaties collection. Tunis alterations: Miller's notes, sections "The Alterations" and "The Negotiations of 1799."

7. O'Brien, dispatch of 12 October 1798, 258-262. The repository includes a five-page extract for comparison with its source-linked records. It preserves the printed witness rather than silently correcting its orthography.

8. Algiers, 5 September 1795, art. 4, contemporary English text: Miller/Avalon. The boarders' number is distinguished from rowers; the text permits additional boarding with the commander's express leave.

9. Tripoli, 4 November 1796 and 3 January 1797, arts. 4-5, Barlow English text: Miller/Avalon. The one-year purchase clause and eighteen-month general clause are separate provisions.

10. Tunis, 28 August 1797, as altered in March 1799, arts. 4 and 7: Miller/Avalon. The edition's English text derives from the French translation of a Turkish original; no new linguistic translation is offered here.

11. Tripoli, 4 June 1805, arts. 6-7: Miller/Avalon. The two-year period is explicit in the published English text.

12. Algiers, 30 June and 3 July 1815, arts. 7-8: Miller/Avalon; Algiers, 22-23 December 1816, arts. 7-8: Miller/Avalon. Treaty dates and witness status follow the critical edition rather than later summary chronologies.

13. Morocco, 1786, arts. 4, 5, and 11: Miller/Avalon; Tunis, art. 5. Pursuit restrictions also appear in Tripoli 1796, art. 8; Tripoli 1805, art. 10; and Algiers 1815 and 1816, art. 11. Morocco is a comparator, not an observation of the later Regency system.

14. O'Brien, 258-260. The source reports arrival at Algiers on 5 October; it does not separately establish the day of capture at sea. The simple chronological comparison here is not a reconstruction of every legally possible starting date.

15. O'Brien, 260-261. One-tenth of an inch is his reported discrepancy, not a measurement made on the historical enclosures in this study.

16. National Archives at Boston, "Mediterranean Passport for the Ship Commerce," passport dated 11 August 1797, RG 26, collection description (reviewed 15 February 2024). This record corroborates the physical type, not the particulars of the Mary proceedings.

17. O'Brien, 261-262. His warning about national and state flags is treated as the consul's account of a recognition problem, not independent evidence that every Algerian official was unable to read English.

18. J. H. Kramers, translation of the 1795 Turkish text, art. 4 and note 7, in Miller, vol. 2: Miller/Avalon. The edition states that Kramers worked in collaboration with C. Snouck Hurgronje.

19. C. Snouck Hurgronje, annotated rendering of the 1796 Arabic, arts. 4-5: Miller/Avalon; witness context in Miller's notes. The later rendering is distinguished from Barlow's contemporary English text.

20. Algiers 1816, English art. 8 and Kramers's rendering of the Turkish summary, art. 8: Miller/Avalon. The Turkish witness is described by the edition as a translation or summary accompanying the English original.

Selected bibliography

Benton, Lauren, and Adam Clulow. "Empires and Protection: Making Interpolity Law in the Early Modern World." *Journal of Global History* 12, no. 1 (2017): 74-92.

De Lange, Erik. *Menacing Tides: Security, Piracy and Empire in the Nineteenth-Century Mediterranean.* Cambridge: Cambridge University Press, 2024. https://doi.org/10.1017/9781009364126.

Goodin, Brett. "Opportunities of Empire: Three Barbary Captives and American Nation-Building, 1770-1840." PhD diss., Australian National University, 2015.

Knox, Dudley W., ed. *Naval Documents Related to the United States Wars with the Barbary Powers.* Vol. 1, *Naval Operations Including Diplomatic Background from 1785 through 1801.* Washington, DC: Government Printing Office, 1939.

Lambert, Frank. *The Barbary Wars: American Independence in the Atlantic World.* New York: Hill and Wang, 2005.

Miller, Hunter, ed. *Treaties and Other International Acts of the United States of America.* Vol. 2, *Documents 1-40: 1776-1818.* Washington, DC: Government Printing Office, 1931. Treaty texts, translations, and editorial notes reproduced by the Avalon Project, Yale Law School.

National Archives at Boston. "Mediterranean Passport for the Ship Commerce." Records of the U.S. Coast Guard, Record Group 26. https://www.archives.gov/boston/highlights/ship-commerce.

Peskin, Lawrence A. *Captives and Countrymen: Barbary Slavery and the American Public, 1785-1816.* Baltimore: Johns Hopkins University Press, 2009.

Stein, Tristan. "Passes and Protection in the Making of a British Mediterranean." *Journal of British Studies* 54, no. 3 (2015): 602-631. https://doi.org/10.1017/jbr.2015.58.